

GSA - LIMITED SOURCE JUSTIFICATION

1. Identification of Agency and Contracting Activity

This is a Limited Source Justification. The requiring activity is United States Indo Pacific Command (USINDOPACOM), Code J3; the contracting activity is the NAVSUP Fleet Logistics Center Pearl Harbor (FLCPH).

2. Nature and/or Description of the Action Being Approved

This acquisition is conducted under the authority of the Multiple Award Schedule Program (Title 41 U.S.C. 152 (3) and Title 40 U.S.C. 501, Services for Executive Agencies). This is a limited source action to be awarded thru GSA e-Buy under FSS Contract # 47QSMA24D08N9 to Office Pavilion, Contract Furnishers of Hawaii, Inc. (dba Office Pavilion) a Woman-Owned Small Business (WOSB) identified in paragraph (3) below. The placement of a firm-fixed-price (FFP) order is anticipated.

3. Description of Supplies/Services to Meet the Agency's Needs Including Estimated Value

The proposed acquisition is for a furniture package and installation project for the United States Indo-Pacific Command (USINDOPACOM) J3 program to purchase specific workstation furniture in Bldg. 700 located at Camp H.M. Smith, Oahu, Hawaii. The project intent is to replace existing furniture with smaller cubicles in the J3 space creating a total of fifty-two (52) workstations and three (3) conference rooms. The period of performance is to be completed no later than 30 September 2025. The only vendor capable of supporting this requirement is Office Pavilion, Contract Furnishers of Hawaii, Inc. and the estimated value of the project is [REDACTED] which represents the minimum requirements of the Government.

Is the requested material or service represents the minimum requirements of the Government Estimated Dollar?

Estimated Dollar Value:

FY/Option/Ordering Period	OM&N	OPN	RDT&E
FY25	[REDACTED]	0.00	0.00
Subtotals	[REDACTED]	0.00	0.00
		Total	[REDACTED]

4. Statutory Authority Permitting Other Than Full and Open Competition

41 U.S.C. 251 as implemented by FAR 8.405-6(a)(1)(i)(B)
Only One Source Capable

Additional Information Regarding Statutory Authority if Applicable

N/A

5. Rationale Justifying Use of Cited Statutory Authority

In 2004, the initial USINDOPACOM Headquarter furnishing project requirements were procured through full and open competition and awarded to Office Pavilion, Contract Furnishers of Hawaii, Inc. for Herman Miller, Krug, and Environamics brand furniture. In accordance with USINDOPACOM Instruction 0611.7, paragraph (4), "furniture within Nimitz-McArthur Pacific Command Center (NMPCC) consists of Herman-Miller Ethospace workstations, Krug products, DIRT manufactured partition walls, and other peripheral items and stand-alone pieces. Changes in existing furniture configurations or space allocations will be accommodated by using system furniture pieces from current command inventory if available, to minimize expenses and still maintain uniformity throughout the building." USINDOPACOM Instruction 0611.7, paragraph 6(b) states, "furniture layouts, type, design, and color pallets are standard throughout NMPCC and are not to be changed or replaced without the Headquarters Commandant (J02HQ) and Chief of Staff (J02) written approval." Therefore, USINDOPACOM J3 is seeking to maintain uniformity by purchasing the same brand and style furniture in their procurement for workstations in accordance with the original procurement procedures established by USINDOPACOM instructions.

A key aspect of this specific USINDOPACOM J3 requirement is the plan to re-utilize portions of the on-hand Herman Miller Ethospace tiles, wood top caps and trims, and frames to minimize project costs. The estimated value of existing parts on hand that will be re-utilized in this project amount to approximately [REDACTED]. Any other manufacturer cannot meet this re-utilization, as the items are specific and unique to Herman Miller. Any deviation from this furniture manufacturer will have negative repercussions when/if any reconfigurations are necessary concerning configurations, compatibility, functionality, structure, finish and colors creating non-cost-effective scenarios for the Government and negatively affecting the USINDOPACOM J3 mission. No other furniture manufacturer will meet the Government's requirements of functionality and compatibility with the existing Herman Miller Ethospace furniture and satisfy the uniformity requirements of USINDOPACOM Instruction 0611.7. Office Pavilion, Contract Furnishers of Hawaii, Inc. is the only authorized dealer of Herman Miller, Ethospace furniture in Hawaii and the Pacific Rim that provides authorized warranty support. The warranty support includes Herman Miller's 12-year, 3-shift warranty of parts and labor. Office Pavilion maintains an extensive stock of parts in their warehouse and in their fleet of five (5) vans. This provides Office Pavilion the capability to provide repairs during regular business hours on a daily basis. Office Pavilion is capable of delivering, installing, and completing the reconfiguration

of the newly created J3 office space by 30 September 2025. Therefore, having Office Pavilion, Contract Furnishers of Hawaii, Inc. perform the additional work would provide a single furniture point of contact for purchasing, coordination, re-utilization, and installation of furniture. This continuity of effort would reliably support a successfully phased installation into the office space and limit USINDOPACOM J3 downtime.

Additional information/any other facts supporting the use of limited source(s) including a demonstration of the proposed contractor's unique qualifications to provide the required supply or service

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable, including a Description of Market Research conducted among schedule holders, the results, if applicable, and a List of Interested Sources, or a statement of the reason market research was not conducted.

The requiring activity and contracting activity have conducted market research among schedule holders. In accordance with FAR Part 10, the Contract Specialist reviewed numerous resources to include a search of mandatory sources, an Internet search (Google.com), GSA Advantage, and previously awarded contracts. The Contract Specialist verified via exclusive authorized dealer/distributor letters that Office Pavilion, Contract Furnishers of Hawaii, Inc. is the only authorized reseller of Herman Miller in the State of Hawaii. Office Pavilion, Contract Furnishers of Hawaii, Inc., a woman-owned small business (WOSB) is a BPA holder under GSA FSS.

7. A Statement of the Actions, if any, the Agency May Take to Remove or Overcome Any Barriers that Led to the Restricted Consideration Before Any Subsequent Acquisition for the Supplies or Services is Made.

All future requirements will be handled on a case-by-case basis.

8. Determination of Best Value Consistent with FAR 8.404(d)

GSA has determined the prices of supplies offered on the schedule to be fair and reasonable for the purpose of establishing the schedule contract. However, ordering activities are responsible for making a separate determination of fair and reasonable pricing for individual orders, BPAs, and orders under BPAs. Per Department of Defense (DoD) Class Deviation 2014-OO011, the Fleet Logistics Center Pearl Harbor Contracting Officer will determine prices to be fair and reasonable using the procedures in FAR 15.404-1 and will document such determination with a level of detail commensurate with the complexity and circumstances of the order.

9. Contracting Point of Contact

The point of contact at NAVSUP Fleet Logistics Center Pearl Harbor is Rachel Tamashiro at rachel.m.tamashiro.civ@us.navy.mil.

CERTIFICATIONS/APPROVALS:

TECHNICAL CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Exception to Fair Opportunity and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

Technical Cognizance

I certify that the facts and representations under my cognizance which are included in this Exception to Fair Opportunity and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

Requirements Cognizance

CONTRACTING OFFICER CERTIFICATION

I certify that this Exception to Fair Opportunity is accurate and complete to the best of my knowledge and belief. The Contracting Officer's signature below represents approval of this document.

Contracting Officer's Signature

LEVEL ABOVE CERTIFICATION

If a follow on to an order or BPA previously issued for the same supply or service based on a Justification citing the authority at FAR 8.405-6(a)(1)(i) (B) or (C), provide a copy of the previous justification. If the planned actions to remove barriers to future competition were not completed, the justification for the follow on action must be approved by the approval authority one-level above the approval authority for the previous justification.

**Level Above the Contracting
Officer**

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

Legal Sufficiency Review



CONTRACTING ACTIVITY COMPETITION ADVOCATE REVIEW

Contracting Activity Approval

HEAD OF CONTRACTING ACTIVITY APPROVAL

Upon the basis of the above justification, I hereby approve, as Head of Contracting Activity, the solicitation of the proposed procurement described herein using other than full and open competition, pursuant to the authority of (Placeholder for US code citation)

HCA Approval